

Gascart Participation & Collaboration Agreement

(Generic Standard Draft for Platform Participants)

This Collaboration Agreement (“Agreement”) is entered into on this ____ day of _____ 20__, by and between:

1. STUT INSTRUMENTS

having its principal office at #5, Rajdhani Buildings, KHB Colony, Sirsi, Karnataka, India, owner and operator of the platform [Gascart](#), hereinafter referred to as “**STUT**”, which expression shall include its successors, affiliates and permitted assigns;

AND

2. PARTICIPATING ORGANIZATION

Name: _____

Address: _____

hereinafter referred to as the “**Participant**”, which expression shall include its successors and permitted assigns.

STUT and the Participant are individually referred to as a “Party” and collectively as the “Parties”.

1. PREAMBLE

WHEREAS:

a. STUT operates [Gascart](#), a platform intended to connect stakeholders in the Indian Compressed Biogas (CBG), Biogas, RNG, Bioenergy and allied industrial ecosystem;

b. The Participant is engaged in one or more areas related to the CBG / Biogas / Industrial ecosystem including but not limited to:

- consulting,
- engineering,
- equipment supply,
- machinery manufacturing,
- instrumentation,
- electrical systems,
- automation,
- fabrication,
- spare parts,
- services,
- technology,

- operations,
 - logistics,
 - or associated industrial activities;
- c. The Parties desire to establish a non-exclusive framework for industry networking, visibility, collaboration, business referrals, technology discussions, and potential commercial opportunities through the [Gascart](#) platform.

Accordingly, the Parties record their understanding as follows.

2. PURPOSE

The purpose of this Agreement is to enable participation of the Participant within the [Gascart](#) ecosystem for:

- industry networking,
- business visibility,
- product and service discovery,
- customer interaction,
- technical collaboration,
- project referrals,
- industry communication,
- and mutually beneficial commercial opportunities.

3. SCOPE OF PARTICIPATION

The Participant may:

- list products, services, capabilities, expertise, references, or technologies on [Gascart](#);
- participate in technical and commercial discussions;
- receive business enquiries and industry leads;
- interact with other ecosystem participants;
- participate in exhibitions, webinars, technical events, or promotional activities associated with [Gascart](#);
- collaborate independently with other participants outside the platform.

STUT may:

- onboard and showcase ecosystem participants;
- facilitate industry visibility and introductions;
- organize networking and promotional initiatives;
- maintain participant directories and industry categorization;
- promote ecosystem collaboration on a best-effort basis.

4. NON-EXCLUSIVITY

- a. This Agreement is strictly non-exclusive.
- b. The Participant remains free to:
- work independently,
 - participate in competing platforms,
 - engage with customers directly,
 - appoint dealers, distributors, consultants, or partners,
 - or conduct any lawful business activity.
- c. STUT shall also remain free to onboard additional participants including competitors operating in similar domains.
- d. During the 1st year from onboarding on the platform [Gascart](#) will not be charging any fees or cost recovery up to 5 distinct products and 3 edits on description or any other attributes.
- e. On expiry of 1st year, based on the merit and efforts goes into maintaining such a platform, Stut Instrument may as for a fixed annual subscription fees.

5. COMMERCIAL UNDERSTANDING

- a. This Agreement does not create any guaranteed business commitment, purchase obligation, sales target, minimum order quantity, or assured lead generation.
- b. Any commercial transaction between the Participant and third parties arising through Gascart shall be independently negotiated between such parties.
- c. STUT is separately entering into, through this agreement for
- referral arrangements,
 - commission structures,
 - consulting assignments,
 - promotional partnerships,
 - paid listings,
 - advertising agreements,
 - or supply arrangements,
 - Every converted lead will attract 2.5% of referral fees or Rs.1000 whichever is higher.
- d. Unless separately agreed in writing, STUT shall not be responsible for:
- product quality,
 - warranties,
 - pricing,
 - delivery,
 - installation,
 - customer disputes,
 - statutory compliance,

- payment recovery,
- or performance obligations of the Participant.

[Gascart](#) is just a platform for making the product visible.

6. PARTICIPANT RESPONSIBILITIES

The Participant agrees that:

- all information shared for posting on the platform shall be reasonably accurate and lawful;
- it shall not knowingly misrepresent products, certifications, references, or capabilities;
- it shall comply with applicable Indian laws and statutory requirements;
- it shall maintain professional conduct in all ecosystem interactions;
- it shall independently evaluate customers, vendors, and opportunities before entering transactions.
- [Gascart](#) or Stut instrument are to be considered as if a virtual shelf space.

7. PLATFORM ROLE LIMITATION

a. Gascart functions primarily as an industry networking and discovery platform.

b. STUT acts only as a platform owner, facilitator, ecosystem promoter, or industry participant unless separately contracted for specific assignments.

c. STUT shall not be considered:

- a guarantor,
- financial intermediary,
- legal representative,
- agent,
- EPC contractor,
- technology certifier,
- or quality assurance authority for participant transactions unless expressly agreed in writing.

8. CONFIDENTIALITY

a. The Parties may exchange certain technical, business, commercial, or customer-related information during interactions.

b. Such information shall be treated as confidential unless:

- already available in public domain,
- independently developed,
- or required to be disclosed by law.

c. Neither Party shall misuse proprietary documents, drawings, pricing, customer databases, software, or technical know-how belonging to the other Party. Also the customer privacy promise to be fulfilled by both the parties.

9. INTELLECTUAL PROPERTY

a. All trademarks, logos, designs, brochures, software, technical documents, and intellectual property shall remain the property of the originating Party.

b. The Participant authorizes STUT to display or not display:

- company name,
- logo,
- product categories,
- publicly shareable references,
- and promotional content, for ecosystem visibility and platform-related activities unless otherwise notified in writing.

10. LIMITATION OF LIABILITY

a. STUT shall not be liable for:

- indirect business losses,
- missed opportunities,
- third-party disputes,
- project failures,
- commercial disagreements,
- payment defaults,
- or consequential damages arising from participant interactions.

b. Participation on the platform shall be on a best-effort and good-faith basis.

c. The leads will be forwarded as received to the other party

d. [Gascart](#) or Stut Instrument and its personnel may choose to refrain from any negotiation cycle taking place between the buyer and the seller.

11. TERM AND TERMINATION

a. This Agreement shall remain valid for an initial period of One (1) year from the Effective Date.

b. Either Party may terminate this Agreement by providing Thirty (30) days written notice.

c. Termination shall not affect:

- ongoing independent commercial contracts,
- accrued payment obligations,
- confidentiality obligations,
- or intellectual property rights.

12. GOVERNING LAW AND DISPUTE RESOLUTION

- a. This Agreement shall be governed by the laws of India.
- b. The Parties shall first attempt amicable resolution through mutual discussions.
- c. Any unresolved disputes shall be referred to arbitration under the Arbitration and Conciliation Act, 1996.
- d. The arbitration venue shall be Bengaluru, Karnataka, India.

13. NON-BINDING NATURE

Except for clauses relating to:

- confidentiality,
- intellectual property,
- limitation of liability,
- governing law,
- and dispute resolution,

this Agreement represents a framework of mutual understanding and ecosystem participation and does not create binding obligations to award business or execute projects.

Both the parties are aware that certain cases would lead to circumventing after the lead generation, hence they agree to any specific amendments to this working agreement as deemed necessary time to time to ensure a fair play.

14. SIGNATURES

IN WITNESS WHEREOF, the Parties have executed this Agreement on the date first written above.

For STUT INSTRUMENTS

Name: _____

Designation: _____

Signature: _____

Date: _____

Seal: _____

For PARTICIPATING ORGANIZATION

Organization Name: _____

Name: _____

Designation: _____

Signature: _____

Date: _____
Seal: